

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge William J. Martínez**

Civil Action No. 1:10-cv-02529-WJM-KMT

DAVID GUARA,

Plaintiff,

v.

CITY OF TRINIDAD, a City Municipality,

Defendant.

VERDICT FORM

1. Has Plaintiff proven by a preponderance of the evidence that he was subject to a hostile work environment based on his race and/or national origin?

_____ Yes X No

If your answer to Question 1 is "No", please sign and date this Verdict Form and inform the Bailiff that you have reached a verdict. If your answer to Question 1 is "Yes", please proceed to Question 2.

2. Has Defendant proven by a preponderance of the evidence that it is not responsible for the hostile work environment?

_____ Yes _____ No

If your answer to Question 2 is "Yes", please sign and date this Verdict Form and inform the Bailiff that you have reached a verdict. If your answer to Question 2 is "No", please continue to Question 3.

3. What amount of damages has Plaintiff proven was caused by the hostile work environment? (You must enter at least \$ 1.00.)

Please sign and date the Verdict Form and notify the Bailiff that you have reached a verdict.

10/25/12
Date

Juror's

Name

Redacted